

AMENDMENTS TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on May 28, 2020, effective May 29, 2020

1	Emergency rule 9. Tolling statutes of limitations for civil causes of action	2
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1 **Emergency rule 9. Tolling statutes of limitations for civil causes of action**

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3 **(a) Tolling statutes of limitations over 180 days**

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5 Notwithstanding any other law, the statutes of limitations and repose for civil
6 causes of action that exceed 180 days are tolled from April 6, 2020, until ~~90 days~~
7 ~~after the Governor declares that the state of emergency related to the COVID-19~~
8 ~~pandemic is lifted~~ October 1, 2020.

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10 **(b) Tolling statutes of limitations of 180 days or less**

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12 Notwithstanding any other law, the statutes of limitations and repose for civil
13 causes of action that are 180 days or less are tolled from April 6, 2020, until August
14 3, 2020.

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16 **Advisory Committee Comment**

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18 Emergency rule 9 is intended to apply broadly to toll any statute of limitations on the filing of a
19 pleading in court asserting a civil cause of action. The term “civil causes of action” includes
20 special proceedings. (See Code Civ. Proc., §§ 312, 363 [“action,” as used in title 2 of the code (Of
21 the Time of Commencing Civil Actions), is construed “as including a special proceeding of a
22 civil nature”]; special proceedings of a civil nature include all proceedings in title 3 of the code,
23 including mandamus actions under §§ 1085, 1088.5, and 1094.5—all the types of petitions for
24 writ made for California Environmental Quality Act (CEQA) and land use challenges]; see also
25 Pub. Resources Code, § 21167(a)–(e) [setting limitations periods for civil “action[s]” under
26 CEQA].)

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28 The rule also applies to statutes of limitations on filing of causes of action in court found in codes
29 other than the Code of Civil Procedure, including the limitations on causes of action found in, for
30 example, the Family Code and Probate Code.